

FIRST ENDORSEMENT

Chief Prosecutor APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr. Department Advocate's Office March 29, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-28561 against Detective Alex Cruz, Tax Registry No. 940038. This case was conferenced on March 28, 2024, before Assistant Deputy Commissioner of Trials, Jeffrey Adler, who approved the negotiated penalty of a plea to the Charges and Specifications and the forfeiture of FIFTEEN (15) vacation days.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor APU
New York City Civilian Complaint Review Board

DISAPPROVED

AUG 01 2024

EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28561
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE DTS	SURNAME, CRUZ	FIRST ALEX	M.I.	COMMAND 102 PRECINCT
SHIELD NO. 7303	TAX REGISTRY NO. 940038	SOCIAL SECURITY NO.		DATE APPOINTED 01/09/2006

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Detective Alex CRUZ, on or about February 10, 2022, at approximately 2125, while assigned to 102 PCT and on duty, and in the 102nd Precinct station house, Queens County, abused their authority as a member of the New York City Police Department, in that, they strip-searched § 87(2)(b) without sufficient legal authority.	PLEADED GUILTY	VACATION DAYS 15.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Detective Alex CRUZ on or about February 10, 2022, at approximately 2125, while assigned to 102 PCT and on duty and inside the 102nd Precinct station house, Queens County, abused their authority as a member of the New York City Police Department, in that, they sexually humiliated § 87(2)(b) in that, when conducting a strip-search of § 87(2)(b) they failed to cover § 87(2)(b) and provide privacy during said search, without sufficient legal authority.	PLEADED GUILTY	

DC Brubio
FIRST DEPUTY COMMISSIONER

6/7/24
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Caber
POLICE COMMISSIONER

8/5/24
DATE



POLICE DEPARTMENT

July 24, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

Re: CCRB Case No. 202208240 (Incident Date: February 10, 2022 on DADS No. 2023-28561)
involving Detective Alex Cruz, Tax No. 940038

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Detective Alex Cruz and has determined that his actions do not warrant discipline.

In this matter, Detective Cruz was charged with conducting a strip search however the prisoner in this matter was already being searched by the arresting officer before being placed in the holding cells. Detective Cruz entered the holding cell to assist the arresting officer. During the search a plastic rustling sound can be heard at which time Detective Cruz briefly folded over the elastic waistband of the prisoner's underwear and a quantity of narcotics in a plastic bag was recovered.

Additionally Detective Cruz was charged with sexually humiliating the prisoner by not providing privacy during said search however, Detective Cruz was not the initiator of the search and only assisted once the prisoner became combative. Detective Cruz did not select the location of the search and therefore cannot be charged with the misconduct of searching a prisoner in a less than private area.

Therefore, the Police Commissioner finds Detective Cruz's actions to be within guidelines and intends to dismiss all Charges and Specifications in this matter and impose no disciplinary action.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Marissa Gillespie, Esq.

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ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

July 31, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB v. Detective Alex Cruz
Disciplinary Case No.: 2023-28561

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated July 24, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss all Charges and Specifications in this matter. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department. I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the recommendation of the CCRB, you determined that the Detective’s actions did not warrant discipline and that you intend to dismiss all of the Charges and Specifications. The CCRB disagrees with your recommendation.

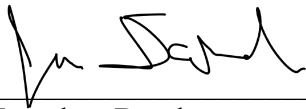
It is undisputed that the other respondent officer conducted a field search of the complainant, conducted a second search at the stationhouse and conducted a third search of the complainant inside the holding cell area. After the complainant initially refused officers’ instructions to remove his shoes, the complainant ultimately complied. The other respondent officer did not discover any contraband inside the complainant’s sneakers, socks, nor did the other respondent officer detect any signs that the complainant was secreting anything on his body from any previous frisks and searches. At this point, the complainant was under arrest for fleeing from officers in a motor vehicle, reckless driving, vehicle equipment violation, unregistered vehicle, and improper vehicle plate violation. None of these criminal charges or violations are associated with weapons or contraband. The investigation did not credit that the other respondent officer had reasonable suspicion to believe that the complainant concealed weapons or contraband on his person until after the other respondent officer

already pulled down the complainant's pants and frisked his underwear. The video evidence obtained captured the other respondent officer pulling down the complainant's jeans exposing his underwear (202208240_20230424_1622_DMI.MP4). The video also captured the other respondent officer stretching the complainant's underwear waistband, exposing the complainant's genitals and that Detective Cruz aided and participated in these acts, as well. As this search was conducted without supervisory authorization in an unsecure room with another prisoner present, without reasonable cause, the strip search was improper.

In addition, Detective Cruz and the other respondent officer conducted a strip search of the complainant inside the Prisoner Processing Room, where another prisoner was lodged inside the single cell. Although during the investigation, the other respondent officer stated that he escorted the complainant to an area of the room that was separated from the cell by a solid wall; all the officers testified that they could observe inside the Prisoner Processing Room from the front desk through a glass panel on the door. Detective Cruz and the other respondent officer failed to take the complainant to a private location when exposing his genitals for this search.

CCRB disagrees that the Charges and Specifications should be dismissed. The parties agreed to a resolution after great deliberation. Detective Cruz accepted responsibility for his actions and had the aid of counsel when doing so. While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, the CCRB requests that the negotiated penalty of the total forfeiture of fifteen (15) vacation days be imposed for the two Charges and Specifications.

Respectfully submitted,



Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

Cc: Marissa Gillespie, Esq.